

IN THE UNITED STATES DISTRICT COURT FOR THE
WESTERN DISTRICT OF ARKANSAS
TEXARKANA DIVISION

BARBARA KAY WALKER

PLAINTIFF

VS.

NO. 4:21-cv-04047-SOH

GATX RAIL LOCOMOTIVE
GROUP, L.L.C.

DEFENDANT

COMPLAINT

Comes now the plaintiff, Barbara Kay Walker, by and through her attorney, Jim R. Jackson, and for her cause of action against the defendant, states:

I. STATEMENT OF VENUE & JURISDICTION

1. This Court has original jurisdiction over this matter based on 28 U.S.C. §1332 – Diversity of Citizenship. The plaintiff is a citizen of the state of Arkansas, and the defendant is a foreign Limited Liability Corporation, with its corporate headquarters in Chicago, Illinois. The plaintiff's damages exceed the amount required for jurisdiction in diversity of citizenship cases.

2. Venue is proper and maintainable in the Western District of Arkansas, Texarkana Division, since the site of the tortious conduct was in Hempstead County, Arkansas.

II. PARTIES TO THE CLAIM

3. The plaintiff, Barbara Kay Walker, is a long-time resident of Hempstead County, Arkansas.

4. The defendant, GATX RAIL LOCOMOTIVE GROUP, L.L.C., is a for-profit foreign limited liability corporation in good standing. Its registered agent of service of process is the Corporation Service Company, 300 Spring Building, Suite 900, 300 S. Spring Street, Little Rock, AR 72201.

III. STATEMENT OF THE CASE

5. On Friday, June 11, 2021, at approximately 8:45 a.m., the defendant's employee, Robert Guy McKinnon, was driving a work truck northbound on North Hervey Street (also known as Arkansas State Highway 278) in Hope, Arkansas. Mr. McKinnon's vehicle was in the center turn lane, and he was attempting to turn left into the Wal-Mart Supercenter parking lot. The traffic signal light for a left-hand turn is controlled by a green arrow signal. At the time of the accident, the traffic signal light was green for vehicles traveling straight through the intersection only. The defendant's employee did not have a green turn arrow and illegally ran the traffic signal light while attempting a left-hand turn into Holiday Drive and into the parking lot of the Wal-Mart Supercenter. At the same time, Barbara Kay Walker was traveling south on North Hervey Street in Hope, Arkansas, from her home in Washington, Arkansas, in her 2007 Jeep Patriot. Barbara Kay Walker had a green light permitting traffic from her lane of travel to proceed through the intersection. The front bumper of the defendant's work truck impacted the driver's door of Barbara Kay Walker's vehicle. The impact caused Barbara Kay Walker to sustain serious bodily injuries to her right leg. Barbara Kay Walker's vehicle incurred substantial property damage.

IV. NEGLIGENCE

6. The defendant's employee was guilty of negligence, which was the proximate cause of the above-described vehicle collision in the following particulars:

- (a) In failing to yield the right-of-way to oncoming traffic in violation of Ark. Code Ann. §27-52-101;

- (b) In failing to yield the right-of-way to oncoming traffic while turning left at an intersection in violation of Ark. Code Ann. §27-51-501;
- (c) In failing to keep the vehicle he was driving under proper control;
- (d) In failing to stop at a traffic light signal, which is a violation of Arkansas statutes and common law;
- (e) In failing to exercise ordinary care for his own safety and for the safety of others using the highway; and
- (f) In driving a pickup truck in a careless and reckless manner, which is a violation of Ark. Code Ann. §27-51-104 and common law.

7. Barbara Kay Walker was obeying the traffic laws at all times relevant to this cause of action.

8. Barbara Kay Walker did nothing to contribute to or cause the wreck which is the subject of this lawsuit.

V. RESPONDEAT SUPERIOR

9. Robert Guy McKinnon was employed by the defendant and was operating within the scope of his employment at all relevant times to this cause of action.

10. GATX RAIL LOCOMOTIVE GROUP, L.L.C., is liable for all injuries and damages caused by Robert Guy McKinnon as a matter of law pursuant the doctrine of *respondeat superior*.

VI. CAUSATION

11. The negligent acts on the part of the defendant's employee were the proximate cause of the injuries and damages sustained by Barbara Kay Walker.

VII. DAMAGES

12. The plaintiff, Barbara Kay Walker, claims she is entitled to recover for the following damages from the defendant, all of which were proximately caused by the negligence of Robert Guy McKinnon:

- (a) Compensatory damages for the reasonable expense of any necessary medical care and other out-of-pocket expenses sustained by Barbara Kay Walker, and the present value of such expenses reasonably certain to be required in the future;
- (b) Compensatory damages for the nature, extent, duration, and permanency of any injury sustained by Barbara Kay Walker;
- (c) Compensatory damages for any pain and suffering experienced by Barbara Kay Walker in the past and reasonably certain to be experienced in the future;
- (d) Compensatory damages for the value of any scars and disfigurement and visible results of her injury;
- (e) The reasonable expense of any necessary help in her home, which has been required as a result of her injury, and the present value of such expenses reasonably certain to be required in the future; and
- (f) Compensatory damages for the difference in the fair market value of her 2007 Jeep Patriot immediately before and immediately after the occurrence, plus a reasonable amount for the loss of use of her vehicle, for the towing fee, and for the storage fee incurred.

13. The plaintiff's total compensatory damages, as shall be proven by the evidence, are in excess of the amount required for federal jurisdiction in diversity actions.

14. The plaintiff requests a trial by jury as guaranteed by the Seventh Amendment to the U.S. Constitution.

WHEREFORE, the plaintiff, Barbara Kay Walker, prays that she have a judgment against the defendant, for a sum to be determined by a jury; for costs; for post-judgment interest; and for all other necessary and proper relief to which she may be entitled.

Respectfully Submitted,

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